

केन्द्रीय सूचना आयोग
Central Information Commission
बाबा गंगनाथ मार्ग, मुनिरका
Baba Gangnath Marg, Munirka
नई दिल्ली, New Delhi – 110067

File Nos: CIC/CCITC/C/2023/627167; CIC/CCITP/C/2023/625095;
CIC/CCITP/C/2023/625096; CIC/CCITP/C/2023/638684;
CIC/CCITP/C/2023/624227; CIC/CCITP/C/2023/625257;
CIC/CCITA/C/2023/633863; CIC/CCITA/C/2023/634419;
CIC/CBODT/C/2023/628389; CIC/CBODT/C/2023/628391;
CIC/CBODT/C/2023/631382; CIC/CCAPT/C/2023/627179;
CIC/CCAPT/C/2023/624101; CIC/CCAPT/C/2023/630476;
CIC/CCITH/C/2023/639121; CIC/CCACH/C/2023/634425;
CIC/CCACH/C/2023/639511; CIC/CCACH/C/2023/630051;
CIC/CCITG/C/2023/633842; CIC/CCITG/C/2023/633903;
CIC/CCITG/C/2023/639530; CIC/CCITG/C/2023/630042

RADHA RAMAN TRIPATHY

....शिकायतकर्ता /Complainant

VERSUS
बनाम

CPIO,
O/o the Pr. Commissioner of
Income Tax, Aayakar Bhawan,
New CGO Complex, NH-IV,
B-Block, Faridabad – 121001

CPIO,
Income Tax Officer,
Ward – 5, Aayakar Bhawan,
Bhinge Building, Miraj Road,
Opp. Z.P., Sangli – 416416

CPIO,
O/o the Addl. Commissioner of
Income Tax, Aayakar Bhawan,
31-C/2, E-Ward, Tarabai Park,
Kolhapur – 416003

CPIO,
O/o the Addl. Commissioner of
Income Tax, Aayakar Bhavan,
Cantonment Chhavani,
Aurangabad – 431002

CPIO,
Office of the Principal
Commissioner of Income Tax-2,
Aayakar Bhavan, Race Course
Ring Road, Rajkot – 360001

CPIO,
Office of the Income Tax
Officer, Sector 1, Bokaro
Steel City, Bokaro, Jharkhand – 827001

CPIO,
Office of the Pr. Commissioner
of Income-Tax, Aaykar Bhawan,
Rabindra Path, Hazaribagh – 825301

CPIO,
Office of Pr. Commissioner of
Income-Tax 47, C H Area,
Jamshedpur-83100

CPIO,
Chief Commissioner of Income
Tax, Aayakar Bhawan, 121,
M G Road, Nungambakkam,
Chennai - 600034, Tamilnadu.

CPIO,
O/o the Chief Commissioner of
Income Tax - I, Aayakar
Bhawan, 121, M.G. Road,
Chennai - 600034

CPIO,
O/o the Chief Commissioner of
Income Tax, NER, Aayakar
Bhawan, G.S. Road, Christanbasti,
Guwahati – 781005

....प्रतिवादीगण /Respondents

Date of Hearing : 29.06.2026
Date of Decision : 15.07.2026

INFORMATION COMMISSIONER : Vinod Kumar Tiwari

The above-mentioned Complaint cases are clubbed together as the Complainant as well as the Respondent are same and the subject-matter is similar in nature and hence are being disposed of through a common order.

CIC/CCITC/C/2023/627167

Relevant facts emerging from complaint:

RTI application filed on : 06.10.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 02.06.2023

Information sought:

1. The Complainant filed an RTI application dated 06.10.2022 (online) seeking the following information:

"Paramji Alias His Holiness (In short PAHH) opened one Savings Account in State Bank of India, Chas on 16/03/2005. Obviously, PAHH was required to disclose this account in his ITR for the AY 2005-06. ITR for the A.Y.2003-04 was submitted declaring true and correct income by PAHH. Wealth of PAHH kept increasing as usual which could not be digested by Officers posted at Bokaro, Hazaribagh and Ranchi after seeing the Balance Sheet of His Holiness.

A deep-rooted conspiracy was plotted by the officers posted at Bokaro, Hazaribagh and Ranchi to implicate PAHH and to extort money from His Holiness which is substantiated from the following facts.

Enclosed is the copy of proposal sent by Sri A. S. Xess, the DCIT, Circle-3, Bokaro having jurisdiction over the case of PAHH for selection of Income Tax Assessment proceedings of the Assessment Year 2003-04 for scrutiny.

Sri A.S. Xess raised only one point as ground for selection of the case for scrutiny but in the office of the Chief Commissioner of Income Tax, Ranchi, three points were raised. This was a deep-rooted conspiracy against PAHH.

The copy of Note Sheet written in the office of the CCIT, Ranchi, wherein sanction for scrutiny was accorded by the CCIT on entirely different ground.

The A.O. in his proposal did not mention any specific reason or ground for which this case could have been selected for scrutiny. The A.O. has simply incorporated the statistical data on the basis of ITR filed by PAHH.

Out of three points raised in the office of the CCIT, Ranchi, two of them were not found sufficient for taking the case for scrutiny. The third ground on which the case was selected for scrutiny was false and concocted.

The only ground on which the selection for scrutiny was made, was for not disclosing the Bank Account maintained in the State Bank of India, Chas in the District of Bokaro, Jharkhand.

The said Bank Account which became the basis for selection of the case for scrutiny was opened on 16 March, 2005, hence it was not disclosed at the time of filing of the return for the Assessment Year 2003-04. This bank account was duly disclosed in the return for the respective Assessment Year 2005-06.

Thus, the selection was made on bogus and false ground and just to implicate PAHH by the then Officers of the Income Tax Department under deep rooted conspiracy.

Kindly provide me the following information.

1. Number of cases selected for scrutiny for the AY 2003-04 for not disclosing Bank Accounts opened by the Assessee in FY 2004-05(Liable to disclose in the ITR of AY 2005-06) in respect of all Assessing Officers of PCCIT Charge.”

2. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

Relevant facts emerging from complaint:

RTI application filed on : 20.09.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 23.05.2023

Information sought:

3. The Complainant filed an RTI application dated 20.09.2022 (online) seeking the following information:

"Rs.1,00,00,000/-(One Crore) bribe was demanded by Mr VR Sonbhadra, then ACIT, Bokaro from Paramji Alias His Holiness (PAHH)(PAN- AARPH0661H) for settling Scrutiny Assessment for the AY 2003-04 selected on sole ground of not disclosing Bank Account of SBI. This account was opened on 16/03/2005, as such this could not and was not liable to be disclosed in the ITR of AY 2003-04. However, PCCIT, Patna, the CCIT, Ranchi, The PCIT, Hazaribagh, CBDT and the FMO all closed their eyes and protected the highhandedness of Mr. Sonbhadra.

Out of frustration for not getting bribe of Rs.One Crore from PAHH, Mr Sonbhadra did many wrong things against PAHH and his AR Mr. RR Tripathy. He also caused harassment to followers of PAHH who were not assesses in default . No tax was due from the following persons.

- 1. Ms. Neeta Agarwal- Rs.5,51,000/-deduted. (Assessed to ITO-WD-3(2), Bokaro. Date of recovery-12/04/2008 from SBI, Station Road, Surat.*
- 2. Mr. Ram Punit Chaudhary-Rs.1,10,000/- recovered. (Assessed to ITO- Wd-3(2), Bokaro. Recovered on 12/04/2008 from SBI, Station Road, SURAT.*
Bank Account of Ms. Neeta Agarwal- SBI-10394517162
Bank Account of Ram Punit Chaudhary- SBI-10394517173.
Unfortunately, No refund have been granted to them until now in spite of several requests.

Point to be noted is that no tax were due from any of the assesses mentioned as above. This is an unique experience and a kind of extortion by Mr. Sonbhadra.

Kindly provide me the following information.

1. *Number of assesses who were not an Assessee in default but tax were recovered from their bank account during the period from 01-04-2008 to 31-03-2010 in respect of all Assessing Officers of your charge."*

4. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITP/C/2023/625096

Relevant facts emerging from complaint:

RTI application filed on : 20.09.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 23.05.2023

Information sought:

5. The Complainant filed an RTI application dated 20.09.2022 (online) seeking the following information:

"Rs.1,00,00,000/-(One Crore) bribe was demanded by Mr VR Sonbhadra, then ACIT, Bokaro from Paramji Alias His Holiness (PAHH)(PAN- AARPH0661H) for settling Scrutiny Assessment for the AY 2003-04 selected on sole ground of not disclosing Bank Account of SBI. This account was opened on 16/03/2005, as such this could not and was not liable to be disclosed in the ITR of AY 2003-04. However, PCCIT, Patna, the CCIT, Ranchi, The PCIT, Hazaribagh, CBDT and the FMO all closed their eyes and protected the highhandedness of Mr. Sonbhadra.

Out of frustration for not getting bribe of Rs.One Crore from PAHH, Mr Sonbhadra did many wrong things against PAHH and his AR Mr. RR Tripathy. He also caused harassment to followers of PAHH who were not assesses in default . No tax was due from the following persons.

3. *Ms. Neeta Agarwal- Rs.5,51,000/-deduted. (Assessed to ITO-WD-3(2), Bokaro. Date of recovery-12/04/2008 from SBI, Station Road, Surat.*
4. *Mr. Ram Punit Chaudhary-Rs.1,10,000/- recovered. (Assessed to ITO- Wd-3(2), Bokaro. Recovered on 12/04/2008 from SBI, Station Road, SURAT.*
Bank Account of Ms. Neeta Agarwal- SBI-10394517162
Bank Account of Ram Punit Chaudhary- SBI-10394517173.

Unfortunately, No refund have been granted to them until now in spite of several requests.

Point to be noted is that no tax were due from any of the assesses mentioned as above. This is an unique experience and a kind of extortion by Mr. Sonbhadra.

Kindly provide me the following information.

Number of assesses who were not an Assessee in default but tax were recovered from their bank account during the period from 01-04-2008 to 31-03-2010 in respect of all Assessing Officers of your charge.”

6. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITP/C/2023/638684

Relevant facts emerging from complaint:

RTI application filed on : 26.09.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 08.08.2023

Information sought:

7. The Complainant filed an RTI application dated 26.09.2022 (online) seeking the following information:

“Rs.1,00,00,000/-(One Crore) bribe was demanded by Mr VR Sonbhadra, then ACIT, Bokaro from Paramji Alias His Holiness (PAHH)(PAN- AARPH0661H) for settling Scrutiny Assessment for the AY 2003-04 selected on sole ground of not disclosing Bank Account of SBI. This account was opened on 16/03/2005, as such this could not and was not liable to be disclosed in the ITR of AY 2003-04. However, PCCIT, Patna, the CCIT, Ranchi, The PCIT, Hazaribagh, CBDT and the FMO all closed their eyes and protected the highhandedness of Mr. Sonbhadra.

Out of frustration for not getting bribe of Rs.One Crore from PAHH, Mr Sonbhadra did many wrong things against PAHH and his AR Mr. RR Tripathy. He also caused harassment to followers of PAHH who were not assesses in default . No tax was due from the following persons.

Ms. Neeta Agarwal- Rs.5,51,000/-deduted. (Assessed to ITO-WD-3(2), Bokaro. Date of recovery-12/04/2008 from SBI, Station Road, Surat.
Mr. Ram Punit Chaudhary-Rs.1,10,000/- recovered. (Assessed to ITO- Wd-3(2), Bokaro. Recovered on 12/04/2008 from SBI, Station Road, SURAT.
Bank Account of Ms. Neeta Agarwal- SBI-10394517162
Bank Account of Ram Punit Chaudhary- SBI-10394517173.
Unfortunately, No refund have been granted to them until now in spite of several requests.

Point to be noted is that no tax were due from any of the assesses mentioned as above. This is an unique experience and a kind of extortion by Mr. Sonbhadra.

Kindly provide me the following information.

- 1. Number of assesses who were not an Assessee in default but tax were recovered from their bank account during the period from 01-04-2008 to 31-03-2010 in respect of all Assessing Officers of your charge."*

8. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITP/C/2023/624227

Relevant facts emerging from complaint:

RTI application filed on : 31.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 16.05.2023

Information sought:

9. The Complainant filed an RTI application dated 31.05.2022 (online) seeking the following information:

"Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04.

Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. This is ridiculous and absurd.

It is ridiculous that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. Until now the CBDT, the MoF, the Revenue Secretary all kept mum and supported this corrupt officer.

Kindly provide me the following information in respect of all Assessing Officers of PCCIT, Charge.

1. Number of scrutiny cases in which First Page of Order Sheet has been written in the office of the CCIT office and not by the Assessing Officer itself for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, Pune."

10. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITP/C/2023/625257

Relevant facts emerging from complaint:

RTI application filed on	: 20.09.2022
CPIO replied on	: Not on record
First appeal filed on	: Not on record
First Appellate Authority's order	: Not on record
2nd Appeal/Complaint dated	: 24.05.2023

Information sought:

11. The Complainant filed an RTI application dated 20.09.2022 (online) seeking the following information:

“Rs.1,00,00,000/-(One Crore) bribe was demanded by Mr VR Sonbhadra, then ACIT, Bokaro from Paramji Alias His Holiness (PAHH)(PAN- AARPH0661H) for settling Scrutiny Assessment for the AY 2003-04 selected on sole ground of not disclosing Bank Account of SBI. This account was opened on 16/03/2005, as such this could not and was not liable to be disclosed in the ITR of AY 2003-04. However, PCCIT, Patna, the CCIT, Ranchi, The PCIT, Hazaribagh, CBDT and the FMO all closed their eyes and protected the highhandedness of Mr. Sonbhadra.

Out of frustration for not getting bribe of Rs.One Crore from PAHH, Mr Sonbhadra did many wrong things against PAHH and his AR Mr. RR Tripathy. He also caused harassment to followers of PAHH who were not assesses in default . No tax was due from the following persons.

1. Ms. Neeta Agarwal- Rs.5,51,000/-deducted. (Assessed to ITO-WD-3(2), Bokaro. Date of recovery-12/04/2008 from SBI, Station Road, Surat.

2. Mr. Ram Punit Chaudhary-Rs.1,10,000/- recovered. (Assessed to ITO- Wd-3(2), Bokaro. Recovered on 12/04/2008 from SBI, Station Road, SURAT.

Bank Account of Ms. Neeta Agarwal- SBI-10394517162

Bank Account of Ram Punit Chaudhary- SBI-10394517173.

Unfortunately, No refund have been granted to them until now in spite of several requests.

Point to be noted is that no tax were due from any of the assesses mentioned as above. This is an unique experience and a kind of extortion by Mr. Sonbhadra.

Kindly provide me the following information.

1. Number of assesses who were not an Assessee in default but tax were recovered from their bank account during the period from 01-04-2008 to 31-03-2010 in respect of all Assessing Officers of your charge.”

12. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

Relevant facts emerging from complaint:

RTI application filed on : 29.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 10.07.2023

Information sought:

13. The Complainant filed an RTI application dated 29.05.2022 (online) seeking the following information:

"Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04. Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has not been Given.

It is ridiculous that Order Sheet was given starting from page 2 .

Kindly provide me the following information in respect of all Assessing Officers of PCCIT Charge, Ahmedabad.

1. Number of scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, until today.”

14. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITA/C/2023/634419

Relevant facts emerging from complaint:

RTI application filed on : 31.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 14.07.2023

Information sought:

15. The Complainant filed an RTI application dated 31.05.2022 (online) seeking the following information:

“Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04.

Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. This is ridiculous and absurd.

It is ridiculous that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. Until now the CBDT, the MoF, the Revenue Secretary all kept mum and supported this corrupt officer.

Kindly provide me the following information in respect of all Assessing Officers of PCCIT, Charge.

1. Number of scrutiny cases in which First Page of Order Sheet has been written in the office of the CCIT office and not by the Assessing Officer itself for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, Ahmedabad."

16. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CBODT/C/2023/628389

Relevant facts emerging from complaint:

RTI application filed on : 08.04.2019
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 05.06.2023

Information sought:

17. The Complainant filed an RTI application dated 08.04.2019 (online) seeking the following information:

"Kindly provide me the following information under RTI Act,2005 in respect of JCIT,Range-3, Bokaro.

1. Number cases in which Penalty u/s 271B have been imposed during the month of March,2019.

2. Amount of Penalty imposed as at sl.1 above."

18. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CBODT/C/2023/628391

Relevant facts emerging from complaint:

RTI application filed on : 08.04.2019
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 05.06.2023

Information sought:

19. The Complainant filed an RTI application dated 08.04.2019 (online) seeking the following information:

"Kindly provide me the following information under RTI Act, 2005 in respect of JCIT, Range-3, Bokaro.

1. Total Number of RTI applications filed during the month of March, 2019."

20. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CBODT/C/2023/631382

Relevant facts emerging from complaint:

RTI application filed on : 26.11.2021
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 24.06.2023

Information sought:

21. The Complainant filed an RTI application dated 26.11.2021 (online) seeking the following information:

“An amount of Rs.1,10,000/- was illegally recovered from the bank account of Mr. Ram Punit Chaudhary, an assessed of ITO, Ward-3(2). The amount was recovered by Mr. VR Sonbhadra, then ACIT, Bokaro who was not an assessing officer of Mr Ram Punit Chaudhary. The date of recovery being 12-04-2008, several request were made for refund of recovered amount, as he was not an assessee in default. But the entire department has failed to refund that amount until today. Absurd, Ridiculous and false replies are being given by the higher authorities to hide their wrongdoings.

Kindly provide me the following information.

1. Action taken on my e-mail sent through id rrtripathy@gmail.com to office of the Revenue Secretary on 21/01/2021 at 08.15 pm.”

22. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCAPT/C/2023/627179

Relevant facts emerging from complaint:

RTI application filed on : 06.10.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 06.10.2022

Information sought:

23. The Complainant filed an RTI application dated 06.10.2022 (online) seeking the following information:

“Paramji Alias His Holiness (In short PAHH) opened one Savings Account in State Bank of India, Chas on 16/03/2005. Obviously, PAHH was required to disclose this account in his ITR for the AY 2005-06. ITR for the A.Y.2003-04 was submitted declaring true and correct income by PAHH.

Wealth of PAHH kept increasing as usual which could not be digested by Officers posted at Bokaro, Hazaribagh and Ranchi after seeing the Balance Sheet of His Holiness.

A deep rooted conspiracy was plotted by the officers posted at Bokaro, Hazaribagh and Ranchi to implicate PAHH and to extort money from His Holiness which is substantiated from the following facts.

Enclosed is the copy of proposal sent by Sri A.S.Xess, the DCIT, Circle-3, Bokaro having jurisdiction over the case of PAHH for selection of Income Tax Assessment proceedings of the Assessment Year 2003-04 for scrutiny.

Sri A.S.Xess raised only one point as ground for selection of the case for scrutiny but in the office of the Chief Commissioner of Income Tax, Ranchi, three points were raised . This was a deep rooted conspiracy against PAHH.

The copy of Note Sheet written in the office of the CCIT, Ranchi, wherein sanction for scrutiny was accorded by the CCIT on entirely different ground.

The A.O. in his proposal did not mention any specific reason or ground for which this case could have been selected for scrutiny. The A.O. has simply incorporated the statistical data on the basis of ITR filed by PAHH.

Out of three points raised in the office of the CCIT, Ranchi, two of them were not found sufficient for taking the case for scrutiny. The third ground on which the case was selected for scrutiny was false and concocted.

The only ground on which the selection for scrutiny was made, was for not disclosing the Bank Account maintained in the State Bank of India, Chas in the District of Bokaro, Jharkhand.

The said Bank Account which became the basis for selection of the case for scrutiny was opened on 16 March, 2005, hence it was not disclosed at the time of filing of the return for the Assessment Year 2003-04. This bank account was duly disclosed in the return for the respective Assessment Year 2005-06.

Thus the selection was made on bogus and false ground and just to implicate PAHH by the then Officers of the Income Tax Department under deep rooted conspiracy.

Kindly provide me the following information.

1. Number of cases selected for scrutiny for the AY 2003-04 for not disclosing Bank Accounts opened by the Assessee in FY 2004-05(Liable to

disclose in the ITR of AY 2005-06) in respect of all Assessing Officers of PCCIT Charge.”

24. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCAPT/C/2023/624101

Relevant facts emerging from complaint:

RTI application filed on : 29.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 16.05.2023

Information sought:

25. The Complainant filed an RTI application dated 29.05.2022 (online) seeking the following information:

“Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04. Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has not been Given.

It is ridiculous that Order Sheet was given starting from page 2.

Kindly provide me the following information in respect of all Assessing Officers of PCCIT Charge, Kolkata.

1. Number of scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, until today.”

26. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCAPT/C/2023/630476

Relevant facts emerging from complaint:

RTI application filed on : 17.02.2021
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 21.06.2023

Information sought:

27. The Complainant filed an RTI application dated 17.02.2021 (online) seeking the following information:

“My complaint in respect of Huge Bogus Income Tax Refund Scam at Bokaro Income Tax Office vide No.40/2020 has been closed on the basis of report of CVC dated 15/01/2021 and CBDT dated 15/12/2020.

Kindly provide me the following information:

1. Copy of enquiry report submitted to the CVC and Lokpal of India regarding not finding any wrongdoings against Officers.

2. Number of cases in which remedial action were taken by the CBDT and concerned IT Officers until 2018.

3. Complete file noting involving sending of reports to CVC and Lokpal regarding Complaint No.40/2020.

4. Copy reports of PCCIT, Patna, CCIT, Ranchi, PCIT, Hazaribagh and JCIT, Bokaro in respect of this complaint to CBDT."

28. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITH/C/2023/639121

Relevant facts emerging from complaint:

RTI application filed on : 20.09.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 09.08.2023

Information sought:

29. The Complainant filed an RTI application dated 20.09.2022 (online) seeking the following information:

"Rs.1,00,00,000/-(One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro from Paramji Alias His Holiness (PAHH) (PAN- AARPH0661H) for settling Scrutiny Assessment for the AY 2003-04 selected on sole ground of not disclosing Bank Account of SBI. This account was opened on 16/03/2005, as such this could not and was not liable to be disclosed in the ITR of AY 2003-04. However, PCCIT, Patna, the CCIT, Ranchi, The PCIT, Hazaribagh, CBDT and the FMO all closed their eyes and protected the highhandedness of Mr. Sonbhadra.

Out of frustration for not getting bribe of Rs.One Crore from PAHH, Mr Sonbhadra did many wrong things against PAHH and his AR Mr. RR Tripathy. He also caused harassment to followers of PAHH who were not assesses in default . No tax was due from the following persons.

- 1. Ms. Neeta Agarwal- Rs.5,51,000/-deducted. (Assessed to ITO-WD-3(2), Bokaro. Date of recovery-12/04/2008 from SBI, Station Road, Surat.*
 - 2. Mr. Ram Punit Chaudhary-Rs.1,10,000/- recovered. (Assessed to ITO- Wd-3(2), Bokaro. Recovered on 12/04/2008 from SBI, Station Road, SURAT.*
- Bank Account of Ms. Neeta Agarwal- SBI-10394517162*

Unfortunately, No refund have been granted to them until now in spite of several requests.

Point to be noted is that no tax were due from any of the assesses mentioned as above. This is an unique experience and a kind of extortion by Mr. Sonbhadra.

Kindly provide me the following information.

1. Number of assesses who were not an Assessee in default but tax were recovered from their bank account during the period from 01-04-2008 to 31- 03-2010 in respect of all Assessing Officers of your charge.”

30. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCACH/C/2023/634425

Relevant facts emerging from complaint:

RTI application filed on : 31.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 14.07.2023

Information sought:

31. The Complainant filed an RTI application dated 31.05.2022 (online) seeking the following information:

“Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04.

Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. This is ridiculous and absurd.

It is ridiculous that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. Until now the CBDT, the MoF, the Revenue Secretary all kept mum and supported this corrupt officer.

Kindly provide me the following information in respect of all Assessing Officers of PCCIT, Charge.

1. Number of scrutiny cases in which First Page of Order Sheet has been written in the office of the CCIT office and not by the Assessing Officer itself for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, Chennai."

32. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCACH/C/2023/639511

Relevant facts emerging from complaint:

RTI application filed on	: 06.10.2022
CPIO replied on	: Not on record
First appeal filed on	: Not on record
First Appellate Authority's order	: Not on record
2nd Appeal/Complaint dated	: 12.08.2023

Information sought:

33. The Complainant filed an RTI application dated 06.10.2022 (online) seeking the following information:

"Paramji Alias His Holiness (In short PAHH) opened one Savings Account in State Bank of India, Chas on 16/03/2005. Obviously, PAHH was required to disclose this account in his ITR for the AY 2005-06. ITR for the A.Y.2003-04 was submitted declaring true and correct income by PAHH.

Wealth of PAHH kept increasing as usual which could not be digested by Officers posted at Bokaro, Hazaribagh and Ranchi after seeing the Balance Sheet of His Holiness.

A deep rooted conspiracy was plotted by the officers posted at Bokaro, Hazaribagh and Ranchi to implicate PAHH and to extort money from His Holiness which is substantiated from the following facts.

Enclosed is the copy of proposal sent by Sri A.S.Xess, the DCIT, Circle-3, Bokaro having jurisdiction over the case of PAHH for selection of Income Tax Assessment proceedings of the Assessment Year 2003-04 for scrutiny.

Sri A.S.Xess raised only one point as ground for selection of the case for scrutiny but in the office of the Chief Commissioner of Income Tax, Ranchi, three points were raised . This was a deep rooted conspiracy against PAHH.

The copy of Note Sheet written in the office of the CCIT, Ranchi, wherein sanction for scrutiny was accorded by the CCIT on entirely different ground.

The A.O. in his proposal did not mention any specific reason or ground for which this case could have been selected for scrutiny. The A.O. has simply incorporated the statistical data on the basis of ITR filed by PAHH.

Out of three points raised in the office of the CCIT, Ranchi, two of them were not found sufficient for taking the case for scrutiny. The third ground on which the case was selected for scrutiny was false and concocted.

The only ground on which the selection for scrutiny was made, was for not disclosing the Bank Account maintained in the State Bank of India, Chas in the District of Bokaro, Jharkhand.

The said Bank Account which became the basis for selection of the case for scrutiny was opened on 16 March, 2005, hence it was not disclosed at the time of filing of the return for the Assessment Year 2003-04. This bank account was duly disclosed in the return for the respective Assessment Year 2005-06.

Thus, the selection was made on bogus and false ground and just to implicate PAHH by the then Officers of the Income Tax Department under deep rooted conspiracy.

Kindly provide me the following information.

1. Number of cases selected for scrutiny for the AY 2003-04 for not disclosing Bank Accounts opened by the Assessee in FY 2004-05(Liable to disclose in the ITR of AY 2005-06) in respect of all Assessing Officers of PCCIT Charge.”

34. Not having received any response from the CPIO, the Complainant failed to file a First Appeal. The FAA order is not on record.

35. Feeling aggrieved and dissatisfied, Complainant approached the Commission with the instant Complaint.

CIC/CCACH/C/2023/630051

Relevant facts emerging from complaint:

RTI application filed on : 03.07.2020
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 19.06.2023

Information sought:

36. The Complainant filed an RTI application dated 03.07.2020 (online) seeking the following information:

“Some of the officers and staff of Income Tax Department are managing their posting at a particular field station for a long time, some for more than 20 years. This gives rise to corruption and leakage of vital information to local tax payers. Some of officers who started their job as clerks remained on the same station even after promotions in different cadres and being posted for a very short time to other stations for an eye wash.

Kindly provide me the following information :

1. Number of offers/Staff whose total stay at a single station is more than 15 years in all cadres as on 26-06-2020 (For all CCIT Charges).
2. Number of offers/Staff whose total stay at a single station is more than 20 years in all cadres as on 26-06-2020 (For all CCIT Charges).”

37. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITG/C/2023/633842

Relevant facts emerging from complaint:

RTI application filed on : 29.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 08.07.2023

Information sought:

38. The Complainant filed an RTI application dated 29.05.2022 (online) seeking the following information:

"Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04. Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has not been Given.

It is ridiculous that Order Sheet was given starting from page 2 .

Kindly provide me the following information in respect of all Assessing Officers of PCCIT Charge, Guwahati.

1. Number of scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, until today.”

39. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITG/C/2023/633903

Relevant facts emerging from complaint:

RTI application filed on : 29.05.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 11.07.2023

Information sought:

40. The Complainant filed an RTI application dated 29.05.2022 (online) seeking the following information:

“Rs.1,00,00,000/- (One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for settling scrutiny assessment for the AY 2003-04 in his favor. This case was selected for scrutiny on the sole ground of not disclosing one Bank Account of SBI, Chas, Bokaro which was opened on 16/03/2005.

It was absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was liable to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed.

Bribe was not given by PAHH, hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which will be disclosed now one by one.

Since there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the First Page of Order Sheet of Assessment Proceedings for the AY 2003-04.

Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has admitted that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. This is ridiculous and absurd.(Para 3)

It is ridiculous that First Page of Order Sheet has been written in the office of the CCIT, Ranchi. Until now the CBDT, the MoF, the Revenue Secretary all kept mum and supported this corrupt officer.

Kindly provide me the following information in respect of all Assessing Officers of PCCIT, Charge.

1. Number of scrutiny cases in which First Page of Order Sheet has been written in the office of the CCIT office and not by the Assessing Officer itself for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, Guwahati.”

41. Not having received any response from the CPIO, the Complainant the Commission with the instant Complaint.

CIC/CCITG/C/2023/639530

Relevant facts emerging from complaint:

RTI application filed on : 13.12.2022
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 12.08.2023

Information sought:

42. The Complainant filed an RTI application dated 13.12.2022 (online) seeking the following information:

“Kindly refer to the two pages letter written by the then ACIT, Bokaro Mr. VR Sonbhadra on different dates regarding First Page of Order Sheet of Paramji Alias His Holiness (Hereinafter PAHH) (PAN-AARPH 0661H) assessed to tax at Bokaro (Now deceased).

The Case of PAHH for the Assessment Year 2003-04 was absurdly and ridiculously selected for scrutiny on the sole ground of non disclosure of one Bank Account opened on 16/03/2005. PAHH was liable to disclose this bank account in the ITR of AY 2005-06 which he did properly. But the terrorist type officers of Bokaro, Ranchi and Hazaribagh, who could not digest the wealth in the Balance Sheet of PAHH and opted to select the case of AY 2003-04 for Scrutiny on false and absurd grounds.

This matter was brought to the notice of then JCIT, Bokaro, then CIT, Hazaribagh, then CCIT, Ranchi but they all remained silent as huge irregularity was committed by their subordinate officers. In the meantime, since there was huge wrong doings in the process of selection of scrutiny case, Mr. VR Sonbhadra, then ACIT and Assessing Officer opted to destroy the FIRST PAGE of Order Sheet of Assessment Proceedings of AY 2003-04.

Rs. One Crore bribe was demanded by Mr. VR Sonbhadra to settle the scrutiny assessment from PAHH which was not given to him. Mr. Sonbhadra destroyed the FIRST PAGE of Order Sheet and implanted a note sheet written in the office of the CCIT, Ranchi. This note sheet is nothing but the recording of reason for selection of case for Scrutiny. On request by PAHH for filing of Appeal, certified copies of Order Sheet starting from page 2 was given, whereas for other Assessment Years Order Sheet was given starting from page 1.

Page one of the letter confirms that FIRST PAGE of the Order Sheet has not been given to PAHH.

Page two of the letter confirms that FIRST PAGE of the Order Sheet was written in the office of the CCIT, Ranchi. This is absurd and ridiculous.

Order Sheet of Assessment proceedings can only and only be written by the Assessing Officer himself. The claim of Mr. Sonbhadra is false and absurd.

Kindly provide me the following information.

1. Number of Assessment records of Assessing Officers of which First Page was written in the Office of CCIT or PCCIT for the period from 01-04-2003 until now."

43. Not having received any response from the CPIO, the Complainant approached the Commission with the instant Complaint.

CIC/CCITG/C/2023/630042

Relevant facts emerging from complaint:

RTI application filed on : 03.07.2020
CPIO replied on : Not on record
First appeal filed on : Not on record
First Appellate Authority's order : Not on record
2nd Appeal/Complaint dated : 19.06.2023

Information sought:

44. The Complainant filed an RTI application dated 03.07.2020 (online) seeking the following information:

"Some of the officers and staff of Income Tax Department are managing their posting at a particular field station for a long time, some for more than 20 years .This gives rise to corruption and leakage of vital informations to local tax payers. Some of officers who started their job as clerks remained on the same station even after promotions in different cadres and being posted for a very short time to other stations for an eye wash.

Kindly provide me the following information :

- 1. Number of offers/Staff whose total stay at a single station is more than 15 years in all cadres as on 26-06-2020 (For all CCIT Charges).*
- 2. Number of offers/Staff whose total stay at a single station is more than 20 years in all cadres as on 26-06-2020 (For all CCIT Charges)."*

45. Not having received any response from the CPIOa, the Complainant failed to file a first appeal. The FAA order is not on record.

46. Feeling aggrieved and dissatisfied, Complainant approached the Commission with the instant Complaint.

Relevant Facts emerged during Hearing:

Attendance of the parties.

Complainant: Not present despite notice.

Respondent: 1. Dr. Mohnish Digra, Dy. Commissioner-cum-CPIO, Circle-I, Faridabad; 2. Shri Deepak Kaseure, Income Tax Officer/CPIO, Sangli; 3. Shri Balasaheb Gaikwad, Income Tax Officer, Ward 1 (1)/CPIO, Kolhapur; 4. Shri Dushyant, Income Tax Officer/CPIO, Rajkot; 5. Shri Jai Prakash Choudhary, CPIO/Income Tax officer, Ward 3 (1), Bokaro; 6. Shri Rajeev Ranjan, Income Tax Officer; 7. Shri K.V. Dillibaabu, DCIT (HQ)/CPIO, Chennai; 8. Deepjoy Das, Dy. Commissioner/CPIO appeared through video conference/in person.

47. Proof of having served copies of Second Appeal/Complaints on Respondent while filing the same in CIC are not available on record. The Respondent confirmed non-service. Thus, Regulation No. 10 of the Central Information Commission Management Regulations 2007 has not been complied with by the Appellant/Complainant.

48. The Respondents, while defending the cases inter alia submitted that the RTI applications filed by the Complainant were largely repetitive in nature and pertained to generalized statistical information sought from different field formations of the Income Tax Department. It was submitted that wherever the RTI applications were received by the concerned CPIOs and the information was available with the Public Authority, appropriate replies had been furnished to the Complainant in accordance with the provisions of the RTI Act, 2005.

49. The Respondents further submitted that many of the RTI applications contained extensive allegations against individual Income Tax officials and references to personal grievances relating to assessment proceedings of one Paramji Alias His Holiness (PAHH). However, the queries framed by the Complainant sought broad and generic data relating to scrutiny assessments, recovery proceedings, RTI applications, penalty proceedings, and departmental actions across various jurisdictions and charges. The Respondents contended that the information sought was either not maintained in the manner requested or would require compilation and creation of data, which is not mandated under the RTI Act.

50. The Respondents also submitted that certain RTI applications appeared to have been addressed to authorities who may not have been the custodians of the information sought. In such circumstances, the concerned offices examined the requests in accordance with the RTI Act and acted as per the availability of

records and jurisdictional competence. The Respondents denied any *mala fide* intention or deliberate obstruction in furnishing information and submitted that no case for initiation of penalty proceedings under Section 20 of the RTI Act was made out.

51. Further, the Respondent has stated that they had already replied to the RTI Applications as per the records available with them. For the sake of clarity, the contents of the reply given to the Complainant in case wise are reproduced as under:

In file No. **CIC/CCITC/C/2023/627167** following reply was given to the Complainant:

"The applicant Sh. R.R. Tripathy has filed an application under the RTI Act, 2005 received through O/o the Addl. Commissioner of Income Tax, Rang-1, Faridabad received in this office on 04.07.2023 requesting for providing the following information. The information sought for in respect of this office is provided as under:-

Sr.No.	Information sought	Reply
1.	No. of assesseees in whose case Notice u/s 281B of the I.T were issued for the A.Y. 2003-04, AY 2004-05, AY 2005-06 and AY 2006-07	As per record available in this office no such Notices were issued. Hence, the information may be treated as NIL."

In file No. **CIC/CCITP/C/2023/625095** following reply was given to the Complainant:

"I the undersigned Shri. Deepak K Kasture, Income tax Officer, Ward 5, Sangli hereby submit that I have taken over the charge of Income tax Officer, Ward 5, Sangli on 18.06.2026 (FN) on promotion. I have been performing duties of CPIO, Ward 5, Sangli from 18.06.2026(FN) till date. My office is in receipt of above referred notice of hearing of appeal/complaint in respect of the applicant Shri. R.R. Tripathy who has filed RTI seeking information from this office vide RTI online Registration No. CCITP/R/E/22/00105/9 dtd 20.09.2022.

In this regards it is submitted that, though the name of the authorised officer as CPIO, ITO Ward-5, Sangli is Shri. Vijay M. Sanghavi, the charge of the Ward 5, Sangli was holding by Shri. M.R. Pandit who is retired on 31.05.2023. On going through verification of online RTI records of Income tax Officer, Ward 5, Sangli (i.e. CPIO), it is seen that RTI online Registration No. CCITP/R/E/22/00105/9 dtd 20.09.2022 is not received by this office in online mode (In support of this the screen shot is attached) However, there are two RTI applications seen in online RTI Portal with Registration No. CCITP/R/E/22/00105/96 dtd 20.09.2022 and CCITP/R/E/22/00105/92 dtd 20.09.2022. The same RTI applications were disposed off on 14.06.2024 and 20.06.2024 respectively in Online RTI Systems. (copy of reply given is attached). As such, I humbly request to your Honour that the complaint /appeal against this office may please be dropped.”

In file No. **CIC/CCITP/C/2023/625096** following reply was given to the Complainant:

“I the undersigned Shri. Deepak K Kasture, Income tax Officer, Ward 5, Sangli hereby submit that I have taken over the charge of Income tax Officer, Ward 5, Sangli on 18.06.2026 (FN) on promotion. I have been performing duties of CPIO, Ward 5, Sangli from 18.06.2026(FN) till date. My office is in receipt of above referred notice of hearing of appeal/complaint in respect of the applicant Shri. R.R. Tripathy who has filed RTI seeking information from this office vide RTI online Registration No. CCITP/R/E/22/00105/88 dtd 20.09.2022.

In this regards it is submitted that, though the name of the authorised officer as CPIO, ITO Ward-5, Sangli is Shri. Vijay M. Sanghavi, the charge of the Ward 5, Sangli was holding by Shri. M.R. Pandit who is retired on 31.05.2023. On going through verification of online RTI records of Income tax Officer, Ward 5, Sangli (i.e. CPIO), it is seen that the reply to the above referred RTI online Registration No. CCITP/R/E/22/00105/88 dtd 20.09.2022 is disposed off on 20.06.2024 in Online RTI Systems. (copy of reply given is attached) As such, I humbly request to your Honour that the complaint /appeal against this office may please be dropped.

In file No. **CIC/CCITP/C/2023/638684** following reply was given to the Complainant:

The present application, seeking information under the RTI Act, 2005, has been forwarded u/s 6(3) of the R.T.I. Act, 2005 to this office by Jt.CIT, Range-1, Kolhapur through webmail on 03.10.2022.

The information sought by the applicant and reply given to him is as under:-

Sr. No.	Question	Answer
1.	<i>Numbers of assessee who were not as assessee in default but tax were recovered from their bank account during the period from 01.04.2008 to 31.03.2010 in respect of all Assessing Officers of your charge.</i>	<i>The information sought by the applicant is NIL in respect of this ward.</i>

In file No. **CIC/CCITA/C/2023/633863** following reply was given to the Complainant:

“The RTI application in the case of above-mentioned applicant has been received in this office on 08/06/2026 from Central Information Commission with the Notice of Hearing for Appeal/Complaint dated 01/06/2026. The information sought for by the applicant and the reply in this respect is provided as under:

Sr. No.	Information Sought	Compliance
1	<i>Number of Scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, until today.</i>	<i>In this regard, it is to state that the information requested by you is not maintained in this office in the form/format in which it has been sought. As per Section 2(f) of the RTI Act, 2005, a Public Authority is required to provide only such information that already exists in material form and is held by or under the control of the public authority. Further, as per Section 7(9) of the RTI Act, a public authority is not required to create information or provide it in a format different from that in which it is ordinarily maintained, if doing so would disproportionately divert the resources of the public authority. After a thorough search of available records, it is also informed that no</i>

		such record/information, as specifically sought by you, is available in this office. Since the information is not held or maintained by this office in the manner requested, the same cannot be provided.
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2. In view of the above, the application made by the above applicant is treated as disposed off.”

In file No. **CIC/CCITA/C/2023/634419** following reply was given to the Complainant:

“The RTI application in the case of above-mentioned applicant has been received in this office on 08/06/2026 from Central Information Commission with the Notice of Hearing for Appeal/Complaint dated 01/06/2026. The information sought for by the applicant and the reply in this respect is provided as under:

Sr. No.	Information Sought	Compliance
1	Number of Scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all Assessing Officers of PCCIT Charge, Ahmedabad.	In this regard, it is to state that the information requested by you is not maintained in this office in the form/format in which it has been sought. As per Section 2(f) of the RTI Act, 2005, a Public Authority is required to provide only such information that already exists in material form and is held by or under the control of the public authority. Further, as per Section 7(9) of the RTI Act, a public authority is not required to create information or provide it in a format different from that in which it is ordinarily maintained, if doing so would disproportionately divert the resources of the public authority. After a thorough search of available records, it is also informed that no such record/information, as specifically sought by you, is available in

		<i>this office. Since the information is not held or maintained by this office in the manner requested, the same cannot be provided.</i>
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2. In view of the above, the application made by the above applicant is treated as disposed off."

In file Nos. **CIC/CBODT/C/2023/631382; CIC/CBODT/C/2023/628389 and CIC/CBODT/C/2023/628391;** following submissions/reply was given to the Complainant, copy of the same is marked to the CIC:

"The undersigned has received notice of hearing for appeal/complain pertaining to this office which has been received in this office through speed post on 11.06.2026. In the light of the captioned subject cited above and the file no. of the CIC's notice mentioned under reference, it is to state that contents of the appeal in questioned are examined and on the basis of the fact of the case, the counter comments of the CPIO are as under:

1. Against the appeal no. CIC/CBODT/C/2023/631382 regarding the query raised vide RTI registration No. CCAPT/R/T/22/00062, the query asked for was as under : An amount of Rs. 1,10,000/- was illegally recovered from the bank account of Mr. Ram Punit Choudhary, an assessee of ITO, Ward-3(2). The amount was recovered by Mr. V.R.Sonbhadra, then ACIT, Bokaro who was not an assessing officer of Mr. Ram Punit Choudhary . The date of recovery being 12.04.2008, several request were made for refund of recovered amount, as he was not an assessee in default. But the entire department has failed to refund that amount until today. Absurd, Ridiculous and false replies are being given by the higher authorities to hide their wrongdoings.

Kindly provide me the following information:

- 1. Action taken on my e-mail sent through id rrtripathy@gmail.com to office of the Revenue Secretary on 21.01.2021 at 08.15 pm.*
- 2. The fee is paid online.*

The then CPIO, ITO, Ward-3(1), Bokaro had provided the following information on 10.03.2022 which is as under :

"This office is not authorized to take any action regarding this issue."

Hence, the ground of appeal filed by the applicant that there is no reply from the CPIO until today is not correct.

2. Against the appeal no. CIC/CBODT/C/2023/628389 regarding the query raised vide RTI registration No. CCAPT/R/2019/50593, the query asked for was as under:

Kindly provide me the following information under RTI Act, 2005 in respect of JCIT, Range-3, Bokaro:

1. Number cases in which Penalty u/s 271B have been imposed during the month of March, 2019.
2. Amount of penalty imposed as at sl. 1 above.
3. The application fee is paid online.

On perusal of action history of RTI Request No. CCAPT/R/2019/50593, it has been found that the then CPIO, JCIT, Range-3, Bokaro had provided the information on 01.05.2019 under his respective CPIO code. Subsequent to the disposal of the RTI application, a major administrative reorganization took place within the Income Tax Department in September 2020. The current jurisdictional Ward-3(1), Bokaro has been created after the merging of Circle-3(1), Bokaro and other five wards of the erstwhile Range-3, Bokaro, as per the direction of the CBDT in the month of September, 2020. The nomenclature and the working module have also been changed of all the newly created ward and circle office. Because this office was newly constituted post-merger in September 2020, and because the original disposal on 01.05.2019 was executed under a completely different administrative code (that of the JCIT, Range-3, Bokaro), the present JAO charge does not have the technical alignment or physical custody required to retrieve the exact text or copy of the reply issued over seven years ago.

In light of the facts mentioned above which are conclusively confirming that a reply was indeed furnished on 01.05.2019 by the then-competent authority, there has been no denial of information or omission on the part of the department.

It is, therefore, respectfully prayed that the Hon'ble Commission may kindly take the official system action history on record, hold the appellant's claim of "no reply" as infructuous, and drop the proceedings against the present Respondent/CPIO.

3. Against the appeal no. CIC/CBODT/C/2023/628391 regarding the query raised vide RTI request registration No. CBODT/R/2019/80593, the query asked for was as under:

Kindly provide me the following information under RTI Act, 2005 in respect of JCIT, Range-3, Bokaro:

1. Total number of RTI applications filed during the month of March, 2019.
2. The application fee is paid online.

The Appellant has preferred this second appeal on the grounds that he has not received the information sought vide his RTI application filed on 08.04.2019.

It is respectfully brought to the kind notice of the Hon'ble Commission that the current jurisdictional Ward-3(1), Bokaro has been created after the merging of Circle-3(1), Bokaro and other five wards of the erstwhile Range-3, Bokaro, as per the direction of the CBDT in the month of September, 2020. The nomenclature and the working module have also been changed of all the newly created ward and circle office. Consequently, the jurisdictional landscape and the corresponding office structures were completely reorganized.

However, despite best efforts and thorough verification of the database, no record or entry of the impugned RTI application of 2019 could be traced under the existing CPIO charge.

It is respectfully brought to the notice of the Hon'ble Commission that if the said RTI application had indeed been properly routed and forwarded to the then-competent CPIO in 2019, it would have been duly attended to and processed in accordance with the statutory timelines prescribed under the RTI Act, 2005.

In light of the facts stated above, there has been no intentional delay or denial of information on the part of the present CPIO. The inability to furnish the reply of the RTI is solely due to the intervening administrative restructuring and merger of charges.

It is, therefore, respectfully prayed that the Hon'ble Commission may kindly take the above facts on record and drop the proceedings against the present CPIO.

Further, I would like to state the following points for kind perusal and sympathetic consideration Sir:

1. Upon a thorough perusal and verification of the official RTI Online Portal under the code of the undersigned, it is hereby submitted that no RTI application is currently pending for disposal against the applicant as of today's date as claimed by the applicant in the appeal that "There is no reply from the CPIO until today."

-
2. *It is further clarified that a formal reply to every RTI application received in the code of the undersigned has been duly provided to the respective applicants.
These responses were formulated and dispatched based on the facts and information available on record at the time of processing, in strict accordance with the provisions of the RTI Act, 2005.*
 3. *The current jurisdictional Ward-3(1), Bokaro has been created after the merging of Circle-3(1), Bokaro and other five wards of the erstwhile Range-3, Bokaro, as per the direction of the CBDT in the month of September, 2020. The nomenclature and the working module have also been changed of all the newly created ward and circle office.*
 4. *On going through the content of the RTI applications filed by the applicant, it has been found that the applications received from the applicant are repetitive in nature, often seeking information on issues that have already been addressed in previous correspondences. This appears to be an attempt to disproportionately divert the resources of this public authority.*
 5. *Processing these voluminous and repetitive requests requires a disproportionate diversion of man-hours. This hinders our ability to fulfil our primary administrative duties and serve the general public efficiently.*
 6. *The tone and frequency of the applications suggest that the primary motive is not to obtain information in the public interest, but to overwhelm the Public Information Officer (PIO) and create a state of administrative paralysis.*
 7. *The office of the Income Tax Officer, Ward-3(1), Bokaro, is a field assessment unit. The primary statutory functions of this office involve the assessment of income, collection of revenue, and related tax compliance under the Income Tax Act, 1961.*
 8. *This office does not possess the administrative authority, cadre controlling powers, or disciplinary jurisdiction to initiate, investigate, or take consequential action against any officer or official. Disciplinary matters, vigilance inquiries, and administrative actions are strictly within the domain of the respective Head of the Department (HoD), the Principal Chief Commissioner of Income Tax (Pr. CCIT), or the Director General of Income Tax (Vigilance).*
 9. *Since the administrative matter in question does not relate to CPIO-cum-ITO, Ward-3(1), Bokaro, no such records or action-taken reports are maintained by, or available with, this office. Under the RTI Act, a public authority is only required to provide information that is held by it or under its control. The then CPIO acted in complete good faith and provided a factual, transparent response to the Appellant. There was no intent to deny, withhold, or delay the information. The reply was a factual statement clarifying that this specific office lacks the legal and administrative authorization to act upon or hold records of the nature*

requested. In light of the facts stated above, it is respectfully prayed that the response provided by the CPIO may kindly be treated as lawful, factual, and sufficient under the provisions of the RTI Act, 2005. The Second Appeal filed by the Appellant against the CPIO, Ward-3(1), Bokaro, may kindly be closed and disposed of.

Legal Precedents

We would like to draw the Hon'ble Commission's attention to the following observations:

1. *The Hon'ble Apex Court in CBSE vs. Aditya Bandopadhyay (2011): Held that the RTI Act should not be allowed to become a tool to "scourge" public authorities or be misused for harassing officers.*

2. *The Hon'ble CIC Decisions (e.g., Shri Ramesh Chand Jain vs. Delhi Police): The Commission has previously noted that "even a single repetitive RTI has the effect of clogging the RTI channel and adding to the cost of the public authority."*

Prayer before the CIC: In light of the above, we respectfully request the Commission to dismiss the pending appeals/complaints filed by the applicant related to these repetitive matters.

Submitted for kind perusal and needful."

In file No. **CIC/CCAPT/C/2023/624101** following reply was given to the Complainant:

"The application under Right to Information Act, 2005 has been received in this office on 17.06.2026 through email on transfer from O/o PCIT, RU-1, Jamshedpur.

The replies are hereunder which are relating to this office: -

Sl. No.	Nature & detail of the information sought for	Reply
1.	(One Crore) bribe was demanded by Mr. VR Sonbhadra, then ACIT, Bokaro, from Paramji Alias His Holiness (Now PAHH) for doing scrutiny assessment for the AY 2003-04 in his favour. This case was selected for scrutiny on the sole ground of not disclosing one Bank account of SBI,	The desired information is not available with this office as the information sought pertains to the officers falling under the jurisdiction of PCCIT Charge, Kolkata whereas this office comes under the jurisdiction of PCCIT,

Chas, Bokaro which was opened on 16/03/2005. Absurd and ridiculous on part of the Addl. CIT, CIT and the CCIT to ignore this fact and accorded sanction for scrutiny, whereas PAHH was to disclose this Bank Account in the ITR of AY 2005-06 and this was duly reflected and disclosed. Bribe was not given by PAHH; hence VR Sonbhadra and Company became furious and did many wrong things against PAHH and his A.R. which disclosed now one by one, e there was severe irregularities in the entire process of selection of case for scrutiny, Mr. VR Sonbhadra to hide the wrong doings, destroyed the I Page of Order Sheet of Assessment Proceedings for the AY 2003-04. Reply of Mr. VR Sonbhadra is enclosed for kind perusal, wherein he has stated that First Page of Order Sheet has not been Given.	B&J, Patna charge. Earlier also this office was never under the jurisdiction of PCCIT Charge, Kolkata. Therefore, the desired information can not be provided. In view of the above, the application filed under the RTI Act, 2005, by the applicant, Mr, Mr. Radha Raman Tripathi cannot be entertained and accordingly, the same is hereby rejected."
Ridiculous that Order Sheet was given starting from page 2. provide me the following information in respect of all Assessing Officers of PCCIT Charge, Kolkata. Number of scrutiny cases in which First Page of Order Sheet was not given to the Assessee for the Assessment Year 2003-04 in respect of all assessing Officers of PCCIT Charge, until today.	

In file No. **CIC/CCAPT/C/2023/630476** following reply was given to the Complainant:

"Kindly refer to the RTI second appeal filed in respect of above mentioned notice in which he has submitted that that there is no reply from the CPIO until today.

1. *This CPIO is related to office of the Pr. Chief Commissioner of Income Tax (Bihar & Jharkhand), Patna. The CPIO is not having independent office and is not having information over the jurisdiction. The CPIO has to obtain*

information from different sections related to the O/o the Pr.CCIT (Bihar & Jharkhand), Patna.

2. The petitioner has filed RTI application having registration no. CCAPT/R/T/21/00064 date of receipt 03/03/2021 received in this office on 03.03.2021 addressed to the CPIO, Office of the PCCIT, Patna. The registration no. of the RTI application was generated in the Nodal Officer, O/o- Pr.CCIT (B&J), Patna after transfer by the other Public Authority from Central Board of Direct Taxes on 03.03.2021 with reference number CBODT/R/E/21/00474. The appellant has claimed that no reply has been received from CPIO, O/o-Pr.CCIT, Patna in respect of reference no. CBODT/R/E/21/00474. The appellant has not provided registration no. CCAPT/R/T/21/00064 in the complaint which is the actual reference for this CPIO. The appellant sought following information in the RTI application having registration no CBODT/R/E/21/00474 or CCAPT/R/T/21/00064-

1. Copy of enquiry report submitted to the CVC and Lokpal of India regarding not finding any wrongdoings against Officers.
2. Number of cases in which remedial action were taken by the CBDT and concerned IT Officers until 2018.
3. Complete file noting involving sending of reports to CVC and Lokpal regarding Complaint No.40/2020.
4. Copy reports of PCCIT, Patna, CCIT, Ranchi, PCIT, Hazaribagh and JCIT, Bokaro in respect of this complaint to CBDT.

In this regard it is submitted that the RTI application was partially transferred to the CPIO, O/o- the Pr. Commissioner of Income Tax Dhanbad (at point No. 1-4) vide F.No.PCCIT/B&J/Pat/Estt./75010/361/2020-21/6628 dated 03.03.2021 and the CPIO, O/o-the Pr. Commissioner of Income Tax, Ranchi (at point No 4) vide F.No.PCCIT/B&J/Pat/Estt./75010/361/2020-21/6628 dated 03.03.2021 as well as on RTI MIS Portal on 04.03.2021.

Further, following information was provided to the applicant vide this office Memo No. PCCIT/B&J/Pat/Estt./75010/361/2020-21/6870 dated 12.03.2021 by passing Order u/s 7(1) of the RTI Act, 2005-

"3. No such reports have been sent vide this office to the CVC and Lokpal in respect of Huge Income Tax Refund Scam at Bokaro.

4. Information Sought is exempt u/s 8(1)(e) of RTI Act, 2005 as the applicant has not established any large public interest warranting disclosure of such information."

Further, as per action history of RTI request it is found that the RTI was disposed on 22.05.2024 on RTI MIS Portal by DCIT, C-1, Jamshedpur stating that the

information does not pertain to the charge of Circle-1, Jamshedpur, hence the information is Nil.

Hence, the complainant comment that no reply received from CPIO, O/o-Pr.CCIT (B&J), Patna is not true.

Hence, your honour is requested that above submission may be accepted before passing the final order.”

In file No. **CIC/CCITH/C/2023/639121** following reply was given to the Complainant:

Information sought	Reply
Number of assesses who were not an assessee in default but tax was recovered from their bank account during the period from 01.04.2008 to 31.03.2010 is respect of all Assessing Officers of your charge.	Section 7(9) of the Right to Information Act, 2005 is reproduced as under: “An information shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question.” Upon examination of the request, it is observed that, furnishing the information sought would necessitate manual scrutiny of a vast number of old records over an extended period and would require deployment of substantial manpower for a prolonged duration. This would disproportionately divert the resources of the public authority from the discharge of its regular statutory and public functions. Accordingly, as per Section 7(9) of the RTI Act, 2005, since the request requires compilation and collation of information from an enormous volume of historical records, the same cannot be provided in the form sought, as compliance would result in a disproportionate diversion of the resources of the public authority.

In file No. **CIC/CCACH/C/2023/634425** following reply was given to the Complainant:

Information sought	Reply
Number of scrutiny cases in which first page of the order sheet has been written in the office of the CCIT and not by the Assessing Officer itself for the AY 2003-04 in respect of all Assessing Officer of PCCIT Charge, Chennai.	Section 7(9) of the Right to Information Act, 2005 is reproduced as under: <i>"An information shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question."</i> Upon examination of the request, it is observed that, furnishing the information sought would necessitate manual scrutiny of a vast number of old records over an extended period and would require deployment of substantial manpower for a prolonged duration. This would disproportionately divert the resources of the public authority from the discharge of its regular statutory and public functions. Accordingly, as per Section 7(9) of the RTI Act, 2005, since the request requires compilation and collation of information from an enormous volume of historical records, the same cannot be provided in the form sought, as compliance would result in a disproportionate diversion of the resources of the public authority.

In file No. **CIC/CCACH/C/2023/639511** following reply was given to the Complainant:

Information sought	Reply
Number of cases selected for scrutiny for AY 2003-04 for not disclosing bank accounts opened by the assessee in FY 2004-05 (Liable to be disclosed in ITR for AY 2005-06) in respect of all assessing officers of PCCIT charge.	Section 7(9) of the Right to Information Act, 2005 is reproduced as under: <i>"An information shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question."</i>

	Upon examination of the request, it is observed that, furnishing the information sought would necessitate manual scrutiny of a vast number of old records over an extended period and would require deployment of substantial manpower for a prolonged duration. This would disproportionately divert the resources of the public authority from the discharge of its regular statutory and public functions. Accordingly, as per Section 7(9) of the RTI Act, 2005, since the request requires compilation and collation of information from an enormous volume of historical records, the same cannot be provided in the form sought, as compliance would result in a disproportionate diversion of the resources of the public authority.
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In file No. **CIC/CCACH/C/2023/630051** following reply was given to the Complainant:

"The RTI application was filed by Mr. RR Tripathy, Office No. 18, Sreeji Arcade, Thane (W) Mumbai, Maharashtra - 400 602, which was received by this office on 05.07.2020.

2. On verification of the office records, the information sought for by the applicant vide RTI application dated 03.07.2020 is as follows:

Some of the officers and staff of Income Tax Department are managing their posting at a particular field station for a long time, some for more than 20 years. This gives rise to corruption and leakage of vital information to local tax payers. Some of officers who started their job as clerks remained on the same station even after promotions in different cadres and being posted for a very short time to other stations for an eye wash. Kindly provide me the following information:

Qn .1: Number of officers/staff whose total stay at a single station is more than 15 years in all cadres as on 26.06.2020 (Fr all CCIT charges)

Ans to Qn 1: Number of staff whose total stay at a single station is more than 15 years is 560. Number of officers whose total stay at a single station is more than 15 years is 242

Qn No. 2: Number of officers/Staff whose total stay at a single station is more than 20 years in all cadres as on 26.06.2020 (For all CCIT Charges).

Ans to Qn. 2: Number of staff whose total stay at a single station is more than 20 years is 513. Number of officers whose total stay at a single station is more than 20 years is 242."

In file No. **CIC/CCITG/C/2023/633842** following reply was given to the Complainant:

"Kindly refer to your RTI applications bearing Registration No. CCITG/R/E/22/00018 dated 29.05.2022 and Registration No. CCITG/R/E/22/00019 dated 29.05.2022, respectively, filed by you online under the Right to Information Act, 2005, which were received in this office.

In this regard, it is informed that, upon examination of the records available in this office, the information sought in the aforesaid RTI applications is NIL insofar as the office of the Principal Chief Commissioner of Income Tax, North Eastern Region, Guwahati is concerned, as no such information is available or maintained in this office.

It is also stated that, in terms of Section 7(9) of the Right to Information Act, 2005, information shall ordinarily be provided in the form in which it is sought unless providing it in that form would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record concerned. Since no information relevant to the queries raised is available on the records of this office, no further information can be furnished.

It is further informed that the portion of the RTI application relating to information held by the concerned public authority/CPIO has been transferred under Section 6(3) of the Right to Information Act, 2005 on 30.05.2022 for providing an appropriate response directly to you with a request that further communication in the matter may be made directly with the CPIOs concerned."

In file No. **CIC/CCITG/C/2023/633903** following reply was given to the Complainant:

"Kindly refer to your RTI applications bearing Registration No. CCITG/R/E/22/00018 dated 29.05.2022 and Registration No.

CCITG/R/E/22/00019 dated 29.05.2022, respectively, filed by you online under the Right to Information Act, 2005, which were received in this office.

In this regard, it is informed that, upon examination of the records available in this office, the information sought in the aforesaid RTI applications is NIL insofar as the office of the Principal Chief Commissioner of Income Tax, North Eastern Region, Guwahati is concerned, as no such information is available or maintained in this office.

It is also stated that, in terms of Section 7(9) of the Right to Information Act, 2005, information shall ordinarily be provided in the form in which it is sought unless providing it in that form would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record concerned. Since no information relevant to the queries raised is available on the records of this office, no further information can be furnished.

It is further informed that the portion of the RTI application relating to information held by the concerned public authority/CPIO has been transferred under Section 6(3) of the Right to Information Act, 2005 on 30.05.2022 for providing an appropriate response directly to you with a request that further communication in the matter may be made directly with the CPIOs concerned."

In file No. **CIC/CCITG/C/2023/639530** following reply was given to the Complainant:

"Kindly refer to your application referred above which was forwarded by the Income Tax Officer (Hqrs.), O/o. the CIT (Admin & TPS), Guwahati on transfer and received by this office on 15/12/2022.

The information as sought by you vide aforesaid RTI application is furnished for the O/o the Pr. CCIT, NER charge as under:-

Sl. No	Particulars	Details
A.	Number of Assessment records of Assessing Officers of which First Page was written in the office of the CCIT or PCCIT for the period from 01/04/2003 until now.	File notings depend upon case to case. However, this office does not maintain any data for file notings.

In file No. **CIC/CCITG/C/2023/630042** following reply was given to the Complainant:

"Please refer to your RTI application registration No. CCITG/R/T/20/00019 dated 03.07.2020 forwarded vide office letter referred above.

1 Number of Officers/Staff whose total stay at a single station is more than 15 years in all cadres as on 26.06.2020 (For all CCIT Charges)	7 Nos
2. Number of Officers/Staff whose total stay at a single station is more than 20 years in all cadres as on 26.06.2020 (For all CCIT Charges)	29 Nos"

Decision

52. The Commission after adverting to the facts and circumstances of the case, hearing the Respondent officials and perusal of the records, notes that the instant batch of complaints arises out of several RTI applications filed by the Complainant before different authorities of the Income Tax Department. The records indicate that the subject matter of the RTI applications is substantially similar and revolves around allegations concerning assessment proceedings and actions allegedly taken by certain Income Tax officials in relation to one Paramji Alias His Holiness (PAHH).

53. The Commission notes that in the present batch of matters, no one appeared on behalf of the Complainant or the Respondents in File Nos. CIC/CCITP/C/2023/624227, CIC/CCITP/C/2023/625257 and CIC/CCAPT/C/2023/627179 despite service of hearing notice. The Commission has therefore proceeded to decide these matters on the basis of the material available on record.

54. The Commission further observes that the queries raised in the aforesaid three complaint cases are substantially similar to the queries involved in the other connected matters which have already been discussed and addressed in the preceding paragraphs of this common order. The nature of information sought pertains to generalized statistical details relating to scrutiny assessments and recovery proceedings across different charges of the Income Tax Department. The

issues involved are thus substantially identical. The Commission also notes from the available records that it is not clear whether the RTI applications in the aforesaid three complaint cases were addressed to the correct jurisdictional CPIOs having custody of the information sought.

55. The Commission observes from the records and the submissions of the Respondent that replies had been furnished in some of the cases within the prescribed time, while in the remaining cases replies have since been provided after tracing the relevant records upon receipt of the hearing notice from the Commission. The Commission further notes that the Complainant remained absent during the hearing despite due notice and did not avail the opportunity to substantiate the allegations made in the Complaints.

56. It may not be out of place to mention that the present matters have been filed as Complaints under Section 18 of the RTI Act, 2005. The scope of adjudication under Section 18 is limited to examining whether there has been any *mala fide* denial of information, unreasonable delay, or any other violation attracting penal consequences under the RTI Act. It is well settled that proceedings under Section 18 of the RTI Act do not confer any right upon the Complainant to seek directions for disclosure of information, unless such violation is clearly established. In this regard, the Commission relies on one judgment of Hon'ble Supreme Court in "*Chief Information Commissioner & Anr. Vs. State of Manipur & Anr.*" bearing CIVIL APPEAL NOs.10787-10788 OF 2011 decided on 12.12.2011 has held as under:-

"Therefore, the procedure contemplated under Section 18 and Section 19 of the said Act is substantially different. The nature of the power under Section 18 is supervisory in character whereas the procedure under Section 19 is an appellate procedure and a person who is aggrieved by refusal in receiving the information which he has sought for can only seek redress in the manner provided in the statute, namely, by following the procedure under Section 19. This Court is, therefore, of the opinion that Section 7 read with Section 19 provides a complete statutory mechanism to a person who is aggrieved by refusal to receive information. Such person has to get the information by following the aforesaid statutory provisions. The contention of the appellant that information can be accessed through Section 18 is contrary to the express

provision of Section 19 of the Act. It is well known when a procedure is laid down statutorily and there is no challenge to the said statutory procedure the Court should not, in the name of interpretation, lay down a procedure which is contrary to the express statutory provision. It is a time honoured principle as early as from the decision in Taylor v. Taylor [(1876) 1 Ch. D. 426] that where statute provides for something to be done in a particular manner it can be done in that manner alone and all other modes of performance are necessarily forbidden.”

57. The above ratio is applicable to this case as well. The Commission also notes that the Complainant did not avail the statutory remedy of filing a First Appeal under Section 19(1) of the RTI Act, nor he demonstrated any deliberate denial of information or *mala fide* intent on the part of the Respondent so as to attract the provisions of Section 18 of the RTI Act.

58. The Commission observes that the scope of adjudication under the RTI Act is limited to examining whether the information sought is held by the Public Authority and whether the same has been provided or is exempt from disclosure under the provisions of the Act. The Commission is not empowered to adjudicate disputes relating to correctness of records, redressal of grievances, or to direct creation, interpretation or analysis of information.

59. It is also noted that the RTI Act does not cast an obligation upon the Public Authority to collate information from various sources, draw inferences, or provide clarifications, opinions or explanations to the Complainant. The role of the Commission is confined to ensuring access to existing records, subject to statutory exemptions.

60. It is also noted that the Complainant has not placed on record any cogent evidence to establish that the Respondent acted with *mala fide* intent, deliberately withheld information, or caused obstruction in furnishing information. Mere dissatisfaction with the outcome of administrative or vigilance processes does not constitute a violation of the RTI Act.

61. It is relevant to quote the observations made by the Hon'ble Delhi High Court in the matter of *Registrar of Companies & Ors v. Dharmendra Kumar Garg & Anr.* [W.P.(C) 11271/2009] dated 01.06.2012 wherein it was held:

“61. It can happen that the PIO may genuinely and bona fide entertain the belief and hold the view that the information sought by the querist cannot be provided for one or the other reasons. Merely because the CIC eventually finds that the view taken by the PIO was not correct, it cannot automatically lead to issuance of a show cause notice under Section 20 of the RTI Act and the imposition of penalty. The legislature has cautiously provided that only in cases of mala fides or unreasonable conduct, i.e., where the PIO, without reasonable cause refuses to receive the application, or provide the information, or knowingly gives incorrect, incomplete or misleading information or destroys the information, that the personal penalty on the PIO can be imposed....”

62. The Commission finds no *mala fide* on part of the CPIO. Since records of the case do not indicate any such deliberate denial or concealment of information on the part of the CPIO, the Commission concluded that there was no cause of action which would necessitate action under the provisions of Section 20 (1) of the RTI Act, 2005 in the instant complaint.

63. Be that as it may, the Commission further observes from perusal of records that **more than 2700 cases of the same Complainant** against same and different Public Authority have already been heard and disposed of by different benches of the Commission. In this regard, it is also worth noting that **40 complaint cases including the present set of cases listed for today's hearing**. The Complainant has filed numerous RTI Applications seeking similar information in each of his RTI Applications to pressurize the Public Authority rather than actual interest in getting the information denied to him, if any. This intention of the Complainant militates against the spirit of the RTI Act whose primary objective is providing information to the citizens. It appears that the Complainant has grossly misconceived the idea of exercising his Right to Information as being absolute and unconditional. The Commission, like on several occasions in the past, again advises the Complainant to make judicious and sensible use of his rights under the Right to Information Act in future.

64. The Respondent during the hearing submitted that the Complainant has not served a copy of the instant complaints upon the Respondent. The Commission would like to remind the Complainant of the fact that serving a copy of documents (including Complaint/Second Appeal and Written submissions) to

the opposite party is crucial for fairness, transparency, and due process in legal proceedings and also in the interest of expeditious response from the concerned Public Authority. It further reinforces the *bona fide* interest of the Appellant/Complainant in obtaining the information at the earliest possible. The requirement of advanced service is in accordance with the *audi alteram partem* requirement. It further ensures that the opposite party is aware of the facts of filing a case in CIC, arguments of the Complainant and reason for discontentment. It has been the experience that where the Complainant had served advance copy of the Second Appeal/Complaint on the opposite party, the Respondent Public Authority has tried proactively to resolve the case by either providing clarity on the subject or by providing revised and updated reply/information to the Complainant before the matter reaches for the hearing. This ultimately results in faster delivery of information, thus leading to a more efficient and effective Appeal/Complaint disposal. It also reduces the time, energy and efforts of the Commission and Respondent Public Authority in early disposal. It is in his own interest for the Complainant to serve an advance copy of Second Appeal/Complaint on the Respondents.

65. In view of the above facts and circumstances, the Commission finds no infirmity in the action of the Respondent Authority. No case is made out for intervention of the Commission under the RTI Act, 2005.

The above-mentioned Complaints are dismissed accordingly.

Sd/-

Vinod Kumar Tiwari (विनोद कुमार तिवारी)
Information Commissioner (सूचना आयुक्त)

Authenticated true copy
(अभिप्रमाणित सत्यापित प्रति)

Sd/-

(S. Anantharaman)

Dy. Registrar
011- 26181927
Date

Recomendation(s) to PA under section 25(5) of the RTI Act, 2005:-

Nil